

IN THE PROCUREMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY,

PRC Appeal No. 44/2025

M/S Moosa Jan & Co.

**Through its authorized representative Hamayoun Khan S/o Moosa Jan bearing
CNIC No. 54401-0414217-5,
Office at 192-C, Samungli Housing Scheme, Quetta.**

....Appellant

Versus

1. The Chief Secretary, Government of Balochistan.
2. The Secretary, C&W Department
3. The Executive Engineer, Building PP&H District Ziarat.
4. Grievance Redressal Committee through its Chairman, Chief Engineer, C&W Department Sibi Zone.
5. M/S Muhammad Siddique & Brothers.

... **Respondents**

Quorum

- | | |
|---------------------------------|----------------------|
| 1. Habib Ur Rehman Jamot | MD/Chairman PRC |
| 2. Iftikhar Ali Sanjrani | Co-opted Member |
| 3. Engr. Junaid Shah | Member PRC |
| 4. Engr. Iftikhar Ahmed Mir | Technical Member PRC |
| 5. Abdul Wahab Bulledi Advocate | Private Member PRC. |

**APPEAL UNDER RULE-56-A OF THE BPPRA RULES AGAINST TSE
No.252609849293.**

For the Appellant:

Mr. Hamayoun Khan, Representative.

For the Respondents No. 1-5.

Mr. Sanam Zaib, Executive Engineer.

Date of Final Hearing: 26-11-2025

Decided On: 28-11-2025

DECISION

The Appellant has filed appeal in hand with the averment that the Respondent has invited bids for the project title "QUAID E AZAM LIBRARY AND MUSEUM ZIARAT (CULTURE DEPARMENT)". Under the eligibility criteria the Appellant firm was declared eligible and under technical evaluation report, the firm has earned 99 marks out of 100. During the financial opening, the Appellant's bid was found to be lowest among all the bidders, making the firm rightful lowest evaluated bidder but the Procuring Agency unlawfully declared the firm non-responsive (on the basis of non submission of physical bid security documents). The same bid security that had already been accepted during the eligibility stage, however the work order dated 14-11-2025 was issued to the

Respondent No.5. The Appellant being aggrieved from bidding process has invoked the jurisdiction of Complaint Redressal Committee. According to the Appellant fate of decision have not been formally communicated to the Appellant within the prescribed time.

2. Notices were issued to the Respondents, and the Respondent No.3 as well Chief Engineer appeared in person and have filed their para-wise comments whereby they have contested the appeal with the averment that under BPPRA regulations all the bidders were required to submit original bid security (CDR) in the office of the Procuring Agency before the deadline for submission of bids but the Appellant failed to submit original CDR before submission nor during evaluation of bid opened on 24-10-2025.

3. The query was put to the Appellant whether he has submitted the original CDR to the Procuring Agency but his reply was in negative with the allegation that the office of the Procuring Agency on the one hand has refused to accept the original CDR from the Appellant while on the other hand the office of the Respondent No.3 remained closed just to knockout the Appellant from the bidding process. He further added that the original CDR was also available with the Appellant during the GRC/CRC meeting but they have also declined to receive original CDR from the Appellant with the contention that same was to be submitted before opening of financial bid. He further added that under the E-bidding process no original CDR could be physically handed over to the Procuring Agency but he could have submitted the same if required by the Procuring Agency under Tender Notice.

4. Offering lowest rate by the Appellant in the bidding process has not been disputed by the Procuring Agency but as per their statement the Appellant was technically knocked out due to non-submission of original CDR. The original CDR has been shown to this Committee which reveals that it was prepared within time and with the required amount.

5. We have asked the Respondent No.3 as to why they did not required bidder to submit original CDR prior to issuance of work order and whether there is any bar on it to which his replies were not satisfactory and in negative respectively. The Respondent No.3 referred to BPPRA EPPS regulation 2025 Rule 13(g) under which all bidders shall submit bids security manually prior to bid submission deadline because bids security protects the procuring agency from financial risk.

6. We have heard both the parties and have gone through the record which shows that in the E-bidding process original CDR could physically be submitted by the contractor before bid submission deadline but in the instant case the refusal to receive the bid security (CDR) in original from the Appellant is not justified by the Procuring Agency during bidding process and prior to issuance of work order. Above all the

Procuring Agency has not required submission of bid security instrument in physical form in the NIT, hence the fault cannot be shifted to the Appellant.

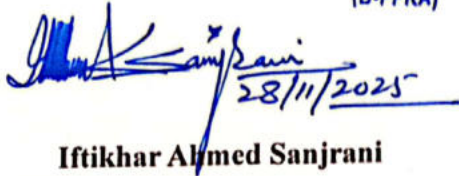
7. In view of the above and the fact of not requiring physical submission of bid security in eligibility criteria in the NIT by the Procuring Agency, the declaration of Procuring Agency to disqualify the bidder as non-responsive and the decision dated 11-11-2025 passed by the GRC is not well-reasoned hence the decision of GRC dated 11-11-2025 is set aside and TSE No. 252609849293 is declared mis-procurement.



Habib Ur Rehman Jamot

Chairman
Procurement Review Committee
(B-PPRA)

28/11/2025



Iftikhar Ahmed Sanjrani

Member
Procurement Review Committee
BPPRA



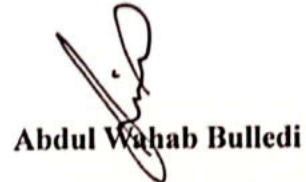
Engr. Junaid Shah

Member
Procurement Review Committee
BPPRA



Eng Iftikhar Ahmed Mir

Member
Procurement Review Committee
BPPRA



Abdul Wahab Bulledi

Member
Procurement Review Committee
BPPRA